

SENATE RESOLUTION No. ____

DIGEST OF INTRODUCED RESOLUTION

A SENATE RESOLUTION urging the Legislative Council to assign the topic of air conditioning units and other landlord-tenant matters to the appropriate interim study committee.

NIEZGODSKI

_____, read first time and referred to Committee on



SENATE RESOLUTION ____

MR. PRESIDENT:

I offer the following resolution and move its adoption:

1 A SENATE RESOLUTION urging the Legislative Council
2 to assign the topic of air conditioning units and other
3 landlord-tenant matters to the appropriate interim study
4 committee.

5
6 *Whereas, Landlords must provide a safe, habitable*
7 *dwelling with working utilities, such as plumbing, heat, and*
8 *electricity, and maintain common areas;*

9 *Whereas, Landlords in Indiana must adhere to specific*
10 *disclosure requirements to ensure transparency and fairness in*
11 *their rental agreements;*

12
13 *Whereas, In 2023, extreme heat was linked to over 11,000*
14 *deaths and 120,000 emergency room visits according to the*
15 *Centers for Disease Control and disproportionately affects*
16 *vulnerable communities;*

17 *Whereas, Window air conditioners are affordable and*
18 *common, especially for apartments, older homes, and mobile*
19 *homes, with about one-quarter of U.S. households relying on*
20 *them;*



1 *Whereas, The average cost of a window air conditioner is*
2 *far cheaper than a central air conditioning system;*

3 *Whereas, In 2021, House Enrolled Act 1541 was enacted*
4 *and has been interpreted narrowly by landlords to ban current*
5 *window air conditioning units without other relief, citing the*
6 *provision that local units of government may not regulate the*
7 *landlord-tenant relationship; and*

8 *Whereas, Landlord-tenant matters, including a landlord*
9 *selling a residential property that is subject to an unexpired*
10 *lease, is becoming a serious concern: Therefore,*

11 *Be it resolved by the Senate of the*
12 *General Assembly of the State of Indiana:*
13

14 SECTION 1. That the Indiana Senate urges the Legislative
15 Council to assign the topic of air conditioning units and other
16 landlord-tenant matters to the appropriate interim study
17 committee.

18 SECTION 2. That the Secretary of the Senate is hereby
19 directed to transmit a copy of this Resolution to State Senator
20 David Niezgodski.

